

The Gazette of Pakistan

**EXTRAORDINARY
PUBLISHED BY AUTHORITY**

ISLAMABAD, TUESDAY, JUNE 23, 2015

PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

**MINISTRY OF INFORMATION TECHNOLOGY
(Information Technology and Telecommunication Division)**

NOTIFICATION

Islamabad, the 22nd June, 2015

S. R. O. 597 (I)/2015.—In exercise of the powers conferred by clause (ab) of sub-section (2) of section 57 of the Pakistan Telecommunication (Re-organization) Act, 1996 (XVII of 1996) read with section 33-B and other enabling provisions thereof, the Federal Government is pleased to direct that the following further amendments shall be made in Universal Service Fund Rules, 2006, namely:—

In the aforesaid Rules,—

- (1) in rule 2, in sub-rule (2), after clause (xi), the following new clause shall be inserted, namely:—

“(xia) “Fund accounts” means the non-lapsable public account opened by the Federal Government for credit of the Fund;”;

- (2) in rule 3,—

- (a) for sub-rule (2) the following shall be substituted, namely:—

(2295)

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“(2) The Fund and all accretions thereto from time to time shall be kept in the Fund account of the Federal Government maintained with the Federal Treasury Office, Islamabad, and release from the Fund shall be made in accordance with these rules.”; and

(b) for sub-rules (5) and (6) following shall be substituted, namely:—

“(5) There shall be a Policy Committee who shall be responsible for management and administration of the Fund. The Policy Committee shall comprise the following, namely:—

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|---|--------------------|
| (a) Minister Incharge for IT | <i>Chairperson</i> |
| (b) Secretary, IT & Telecom Division,
Government of Pakistan | <i>Member</i> |
| (c) Secretary, Finance Division,
Government of Pakistan | <i>Member</i> |
| (d) Member (Telecom),
Federal Ministry of IT | <i>Member</i> |
| (e) Additional Secretary, Cabinet Division,
Government of Pakistan | <i>Member</i> |
| (f) Joint Secretary (Development),
Federal Ministry of IT | <i>Member</i> |
| (g) Chief Finance and Accounts Officer,
Federal Ministry of IT | <i>Member</i> |

(6) The Committee shall administer, control and manage the Fund as well as its account and shall ensure that—

- (a) proper books of accounts for the Fund are maintained;
- (b) custody of the account books, cheque books, securities and other documents and papers pertaining to the Fund and the Fund Account are secured;
- (c) correct disbursements of the budgetary allocations are made;
- (d) one or more signatories to the Fund Account are nominated;
- (e) all matters are addressed related to the audit of the Fund;
- (f) make quarterly releases to the USF Company as per the approved budget of USF Company not later than

- fourteen days before the commencement of each quarter;
- (g) overview and approve assessment for availing grants, endowments from Governments, donors and other agencies;
 - (h) necessary co-ordination with relevant licensees and the Authority on matter related to contributions to the Fund; and
 - (i) decisions of the Committee in regard to the Fund rollout shall be fair and transparent.
- (7) As soon as the annual budget of the USF Company is approved by its Board, the same shall be submitted to the Policy Committee for approval.
- (8) The Fund shall be maintained in a non-lapsable public account at Federal Treasury Office, Islamabad to be maintained and operated by the Ministry of IT in accordance with these rules.”;
- (3) in rule 4, sub-rule (4) shall be omitted;
- (4) rule 7 shall be omitted;
- (5) in rule 8, after sub-rule (2) following shall be added, namely:—
- “(3) The accounts of the Fund shall be operated by the Secretary, Information Technology or his nominee.”;
- (6) for rule 9 the following shall be substituted, namely:—
- “9. **Audit.**—The accounts of the Fund shall be audited annually by the Auditor General of Pakistan.”;
- (7) in rule 15, in sub-rule (2), for clause (d) following shall be substituted, namely:—
- “(d) approve investment policy and schemes for investment of the sums available with the USF Company in the Government risk free financial securities and schemes only;” and
- (8) in rule 22, for clause (j) following shall be substituted, namely:—
- “(j) to prepare schemes for investment of the sums available with USF Company in the government risk free financial securities and schemes only;”

[No. F. 18-14/2006-DT.]

ROHAIL AZIZ QUIDWAI,
Deputy Secretary.

